

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/21/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005785

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: JOSE AVIGAIL GRAMAJO
ORDONEZ

vs.

DEFENDANT: GENERAL MOTORS LLC

NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR
PROGRAM

RULING

This matter was last called on July 31, 2026, with appearances made by the parties. Pursuant to Marin County Rule, Civil 2.13 Bryan Kreft was appointed to preside as Discovery Facilitator for Plaintiff's motion to compel responses to documents, set one, and Feb 18, 2026. Plaintiff alleges that he served three separate meet and confer letters outlining why defendant's responses were not code compliant. The defendant refused to supplement responses. Plaintiff alleges that defendant has not produced documents in connection with RFPs: 1-58. Plaintiff also alleges that Defendant has refused to meet and confer with Plaintiff's counsel via Zoom or phone calls to complete a good faith attempt to meet and confer.

Defendant filed its opposition on May 5, 2026, explaining that under modifications to the . Song-Beverly Consumer Warranty Act, new cases filed after January 1, 2025, new cases under the Act are subject to AB 1755. Defendant argues that discovery is limited, under the act in that defendant must now produce early disclosures of a specific set of documents related to the subject vehicle. The documents produced by the defendant thus far have been identified by the Legislature as "those most associated with lemon law claims". These include a vehicle summary reports, service documents, product brochures, etc.

The Court reminds the parties that compliance with MCR Civ 2.13H not only includes the timely filing of the Declaration of Non-Resolution by each party five court days prior to the hearing but also requires that "[t]he Declaration shall not exceed three pages and ***shall briefly summarize the remaining disputed issues and each party's contentions.***" (MCR Civ 2.13H(1), emphasis added.)

Nothing was filed by either party to provide the court with an update. The Court concludes that this discovery matter has been or is being resolved by the facilitator. The motion is therefore ordered **OFF CALENDAR**. (MCR Civ 2.13H(2).) Should the parties fail to reach resolution through the facilitator, either party may request (by ex parte application) that the Court re-set the motion for an expedited hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/21/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0007029

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: WILLIAM SCOTT HOPPE

vs.

DEFENDANT: THE ESTATE OF RICHARD
CALDWELL BREWER, DECEASED ET AL

NATURE OF PROCEEDINGS: DEMURER

RULING

Defendants' demurrer to the First and Second Causes of Action is sustained *with* leave to amend.

Procedural Deficiencies

Local Rule 2.8(C)2 requires the moving party to attach the operative pleading as an exhibit to the demurrer. Code of Civil Procedure Section 430.41(a)(3) requires that the demurring party meet and confer "in person, by telephone, or by video conference". Defendants did not respect these codes and although the demurrer is not overruled for these reasons, the Court nevertheless reminds Defendants to follow all applicable rules when filing matters with the court. (Code Civ. Proc. § 430.41(a)(4).)

Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law, and it raises only a question of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "ordinarily is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 [citation and internal quotations omitted].) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe*, 42 Cal.4th at 551, fn. 5.) The court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Allegations in the Amended Complaint